

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIGUEL ANGEL HERNANDEZ LOPEZ,

Petitioner

VS.

CAROLINA LOPEZ MURILLO,

Respondent

) Case Number: FDI-25-801503

) Hearing Date: September 17, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER REQUEST TO TRAVEL W/MINOR CHILD

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Miguel Angel Hernandez Lopez (Father) and Respondent Carolina Lopez Murillo (Mother) have one minor child together, Angel (DOB 10/16/2022, age 3). The parties were married on 2/14/2024 and separated on 5/1/2025. The parties have joint legal and physical custody of Angel on a 2-2-5-5- parenting time schedule.
- 2) On for hearing is Father's request to travel with Angel to Oaxaca, Mexico for 11/13/2026 to 12/18/2026. The parties attended mediation, and the Court has received a disposition report that sets forth the parties' respective positions regarding the Mexico trip. The Court has also reviewed and considered the parties' request and response.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

1 2) The Court finds it is in Angel's best interest to be permitted to travel with Father to Oaxaca,
2 Mexico for a period of up to 17 days in November and/or December 2026. For the trip to occur,
3 Father shall abide by the following orders:

- 4 a. At least 20 days before the start date of the intended travel, Father shall provide Mother
5 of written notification of travel information, as follows: (1) a copy of roundtrip flight
6 tickets that show the dates, times, flight numbers, and airlines of the flights; (2) lodging
7 information for the duration of the trip; (3) emergency contact information for the
8 duration of the trip.
- 9 b. During the trip, Mother shall be entitled to a phone or video call with Angel at least every
10 3 days. The calls are expected to be brief, approximately 5 or 10 minutes, given the
11 child's young age. The parties shall in good faith meet and confer regarding the dates and
12 times of these calls.
- 13 c. Within 3 days of the end of the trip, Father shall deliver Angel's passport to Room 402 of
14 the San Francisco Superior Court, 400 McAllister Street, San Francisco, for Family Court
15 Services to retain the passport. In the future, whenever a party wishes to take Angel on an
16 international trip, they will need to submit a written agreement or file a request for a
17 Court order in order to travel internationally with the child and to retrieve the child's
18 passport from Family Court Services.
- 19 d. Father shall ensure that Angel gets appropriate medical care during the trip. Father shall
20 keep Mother informed of any issues relating to Angel's health and welfare that may occur
21 during the trip, including but not limited to illness.
- 22 e. The trip shall be canceled or rescheduled if Angel becomes ill before the trip and a
23 medical professional recommends against travel. The parties shall in good faith work
24 together to reschedule the trip if necessary.

25 3) The parties shall not disparage each other within earshot of Angel.

26 4) The parties shall not speak to Angel about any issues relating to the family court proceedings.

27 5) All communication between the parties shall be respectful and peaceful.

28 6) All prior orders not in conflict with these orders shall remain in full force and effect.

29 7) The Court will prepare the Findings and Order After Hearing.